

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
ESTERLINA ALVAREZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") CHRISTOPHER RYAN
(Shield #7929), Lieutenant TERRANCE R. MCCALL,
and P.O. JOHN DOES 1-5, in their individual capacities,Defendants.
----- X**VERIFIED AMENDED
COMPLAINT****JURY TRIAL DEMANDED****Index No. 500893/2018**

Plaintiff Esterlina Alvarez, through her attorney Gillian Cassell-Stiga of Beldock Levine
& Hoffman, LLP, as and for her complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, assaulted, detained, arrested, and searched her. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of her constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

4. Plaintiff Esterlina Alvarez was at all times relevant to this action, a resident of Kings County in the State of New York.
5. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.
6. New York City Police Department Officer ("P.O.") Christopher Ryan (Shield #7929) ("Ryan"), Lieutenant Terrance R. McCall, and P.O. John Does 1-5 (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
7. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The Individual Defendants are being sued in their individual capacities.
9. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
11. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

VENUE

12. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

ADMINISTRATIVE PREREQUISITES

14. Plaintiff filed a Notice of Claim upon defendant City of New York and the Individual Defendants at the Offices of the City Comptroller, in accordance with the General Municipal Law.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

15. At least thirty days have elapsed since filing of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

16. On October 16, 2016, at approximately 1:50 a.m., Esterlina Alvarez was unlawfully arrested by the Individual Defendants inside the 90th Precinct stationhouse in Kings County in the State of New York.

17. Shortly before her arrest, Ms. Alvarez was celebrating a birthday at a restaurant with her sisters and her brother.

18. The Individual Defendants responded to a fight outside the restaurant.

19. Ms. Alvarez was not involved in the fight

20. The Individual Defendants then entered the restaurant.

21. Ms. Alvarez was preparing to depart the restaurant with her sisters and her brother.

22. Ms. Alvarez observed as her brother was violently grabbed by NYPD officers, thrown to the ground and arrested. Ms. Alvarez knew there was no probable cause for her brother's arrest.

23. Ms. Alvarez and her sisters voluntarily and on their own, walked from the restaurant to the precinct to inquire as to the reason for their brother's arrest and to voice their complaint that the arrest had no basis.

24. At the precinct, Ms. Alvarez and her sisters were also arrested.

25. Ms. Alvarez had committed no criminal acts and the Individual Defendants were aware her arrest was without probable cause. The arrest was motivated by a desire to retaliate against Ms. Alvarez for her verbal complaint.

26. Ms. Alvarez was held in custody for under twenty-four hours, and during much of that time was held in a cell that was very cold but was not even provided a blanket and her shoes were taken from her.
27. Ms. Alvarez was charged with Obstructing Governmental Administration in the Second Degree, PL 195.05.
28. The charges filed were based on the materially false statements submitted by the Individual Defendants.
29. Thereafter, surveillance video recovered from the restaurant revealed that the Individual Defendants had fabricated the charges against Ms. Alvarez. Video establishes that Ms. Alvarez did not engage in the conduct alleged in the criminal complaints filed against her.
30. P.O. CHRISTOPHER RYAN (Shield #7929) and Lieutenant TERRANCE R. MCCALL forwarded false material information in the criminal complaint, including allegations that plaintiff physically interfered in an arrest, to prosecutors to support the charges filed against plaintiff.
31. On October 16, 2017, Ms. Alvarez accepted an adjournment in contemplation of dismissal. The charges against her were dismissed and sealed on or about April 14, 2017.
32. P.O. John Does 1-5 failed to intervene in the unlawful arrest and assault.
33. Ms. Alvarez was so traumatized she sought counseling from a therapist.
34. As a result of the assault and arrest, Ms. Alvarez experienced pain, suffering, mental anguish, and humiliation.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
ELIJAH RODRIGUEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") CHRISTOPHER RYAN
(Shield #7929), Lieutenant TERRANCE R. MCCALL,
and P.O. JOHN DOES 1-5, in their individual capacities,Defendants.
----- X**VERIFIED AMENDED
COMPLAINT****JURY TRIAL DEMANDED****Index No. 500760/2018**

Plaintiff Elijah Rodriguez, through his attorney Gillian Cassell-Stiga of Beldock Levine
& Hoffman LLP, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, assaulted, detained, arrested, and searched him. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of his constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

1. Plaintiff Elijah Rodriguez was at all times relevant to this action, a resident of Kings County in the State of New York.
2. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.
3. New York City Police Department Officer ("P.O.") Christopher Ryan (Shield #7929) ("Ryan") and P.O. John Does 1-5 (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
4. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
5. The Individual Defendants are being sued in their individual capacities.

6. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
7. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
8. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

VENUE

9. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
10. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

ADMINISTRATIVE PREREQUISITES

11. Plaintiff filed a Notice of Claim upon defendant City of New York and the Individual Defendants at the Offices of the City Comptroller, in accordance with the General Municipal Law.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

12. At least thirty days have elapsed since filing of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

4. On October 16, 2016, at approximately 1:50 a.m., Elijah Rodriguez was unlawfully arrested by the Individual Defendants at or about 347 Broadway in Kings County in the State of New York.
5. Shortly before his arrest, Mr. Rodriguez was celebrating a birthday at a restaurant with his sisters.
6. The Individual Defendants responded to a fight outside the restaurant.
7. Mr. Rodriguez was not involved in the fight
8. The Individual Defendants then entered the restaurant.
9. Mr. Rodriguez was preparing to depart the restaurant with his sisters.
10. Mr. Rodriguez was forcefully grabbed by the Individual Defendants and thrown to the ground and arrested.
11. One of the individual defendants, assaulted Mr. Rodriguez while he was handcuffed, causing physical injury to his person.
12. The other Individual Defendants failed to intervene in the unlawful use of force.
13. Mr. Rodriguez was held in custody and then released under twenty-four hours later on his own recognizance.
14. Mr. Rodriguez was charged with Obstructing Governmental Administration in the Second Degree (PL 195.05), Resisting Arrest (PL 205.30), Trespass (PL 140.05), Disorderly Conduct (PL 240.20(6)).
15. The charges were based on the materially false statements submitted by the Individual Defendants to the prosecution, not limited to verbal statements and sworn statements in the criminal complaint, including the allegation that Mr. Rodriguez refused to comply with a lawful police order.

16. Thereafter, surveillance video recovered from the restaurant revealed that the Individual Defendants had fabricated the charges against Plaintiff.
17. The video evidence establishes that Mr. Rodriguez did not engage in the conduct alleged in the criminal complaints filed against him.
18. Petitioner Elijah Rodriguez was prosecuted for over a year, and was required to appear in Court in excess of eight times. The charges against Elijah Rodriguez were ultimately dismissed on November 21, 2017.
19. Mr. Rodriguez had committed no criminal acts and the Individual Defendants were aware his arrest was without probable cause.
20. P.O. John Does 1-5 failed to intervene in the unlawful arrest and assault.
21. As a result of the assault and arrest, Mr. Rodriguez experienced economic loss, pain, suffering, mental anguish, and humiliation.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

22. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
23. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from the use of excessive force; (e) right to fair trial and due process under the law; (f) freedom from the fabrication of evidence or the

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
JAMEELA RODRIGUEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK New York City Police
Department Officer ("P.O.") CHRISTOPHER RYAN
(Shield #7929), Lieutenant TERRANCE R. MCCALL,
and P.O. JOHN DOES 1-5, in their individual capacities,Defendants.
----- X**VERIFIED AMENDED
COMPLAINT****JURY TRIAL DEMANDED****Index No. 500756/2018**

Plaintiff Jameela Rodriguez, through her attorney Gillian Cassell-Stiga of Beldock
Levine & Hoffman LLP, as and for her complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, assaulted, detained, arrested, and searched her. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of her constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

4. Plaintiff Jameela Rodriguez was at all times relevant to this action, a resident of Kings County in the State of New York.
5. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.
6. New York City Police Department Officer ("P.O.") Christopher Ryan (Shield #7929) ("Ryan"), Lieutenant Terrance R. McCall, and P.O. John Does 1-5 (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
7. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The Individual Defendants are being sued in their individual capacities.
9. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
11. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

VENUE

12. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

ADMINISTRATIVE PREREQUISITES

14. Plaintiff filed a Notice of Claim upon defendant City of New York and the Individual Defendants at the Offices of the City Comptroller, in accordance with the General Municipal Law.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

15. At least thirty days have elapsed since filing of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

16. On October 16, 2016, at approximately 1:50 a.m., Jameela Rodriguez was unlawfully arrested the Individual Defendants inside the 90th Precinct stationhouse in Kings County in the State of New York.

17. Shortly before her arrest, Ms. Rodriguez was celebrating a birthday at a restaurant with her sisters and her brother.

18. The Individual Defendants responded to a fight outside the restaurant.

19. Ms. Rodriguez was not involved in the fight

20. The Individual Defendants then entered the restaurant.

21. Ms. Rodriguez was preparing to depart the restaurant with her sisters and her brother.

22. Ms. Rodriguez observed as her brother was violently grabbed by the Individual Defendants, thrown to the ground and arrested. Ms. Rodriguez knew there was no probable cause for her brother's arrest.

23. Ms. Rodriguez and her sisters voluntarily and on their own, walked from the restaurant to the precinct to inquire as to the reason for their brother's arrest and to voice their complaint that the arrest had no basis.

24. At the precinct, Ms. Rodriguez and her sisters were also arrested.

25. Ms. Rodriguez had committed no criminal acts and the Individual Defendants were aware her arrest was without probable cause. The arrest was motivated by a desire to retaliate against Ms. Rodriguez for her verbal complaint.

26. Ms. Rodriguez was held in custody for under twenty-four hours, and during much of that time was held in a cell that was very cold but was not even provided a blanket and her shoes were taken from her.
27. Ms. Rodriguez was charged with Obstructing Governmental Administration in the Second Degree, PL 195.05.
28. The charges filed were based on the materially false statements submitted by the Individual Defendants.
29. Thereafter, surveillance video recovered from the restaurant revealed that the Individual Defendants had fabricated the charges against Ms. Rodriguez. Video establishes that Ms. Rodriguez did not engage in the conduct alleged in the criminal complaints filed against her.
30. P.O. CHRISTOPHER RYAN (Shield #7929) and Lieutenant TERRANCE R. MCCALL forwarded false material information in the criminal complaint, including allegations that plaintiff physically interfered in an arrest, to prosecutors to support the charges filed against plaintiff.
31. On October 16, 2017, Ms. Rodriguez accepted an adjournment in contemplation of dismissal. The charges against her were dismissed and sealed on or about April 14, 2017.
32. P.O. John Does 1-5 failed to intervene in the unlawful arrest and assault.
33. As a result of the assault and arrest, Ms. Rodriguez experienced pain, suffering, mental anguish, and humiliation.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(*Against the Individual Defendants*)**

34. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
DESIREE RODRIGUEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") CHRISTOPHER RYAN
(Shield #7929), Lieutenant TERRANCE R. MCCALL,
and P.O. JOHN DOES 1-5, in their individual capacities,Defendants.
----- X**VERIFIED AMENDED
COMPLAINT****JURY TRIAL DEMANDED****Index No. 500755/2018**

Plaintiff Desiree Rodriguez, through her attorney Gillian Cassell-Stiga of Beldock Levine & Hoffman LLP, as and for her complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, assaulted, detained, arrested, and searched her. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of her constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

4. Plaintiff Desiree Rodriguez was at all times relevant to this action, a resident of Kings County in the State of New York.
5. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.
6. New York City Police Department Officer ("P.O.") Christopher Ryan (Shield #7929) ("Ryan"), Lieutenant Terrance R. McCall, and P.O. John Does 1-5 (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
7. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The Individual Defendants are being sued in their individual capacities.
9. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
11. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

VENUE

12. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

ADMINISTRATIVE PREREQUISITES

14. Plaintiff filed a Notice of Claim upon defendant City of New York and the Individual Defendants at the Offices of the City Comptroller, in accordance with the General Municipal Law.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

15. At least thirty days have elapsed since filing of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

16. On October 16, 2016, at approximately 1:50 a.m., Desiree Rodriguez was unlawfully arrested by the Individual Defendants inside the 90th Precinct stationhouse in Kings County in the State of New York.

17. Shortly before her arrest, Ms. Rodriguez was celebrating a birthday at a restaurant with her sisters and her brother.

18. The Individual Defendants responded to a fight outside the restaurant.

19. Ms. Rodriguez was not involved in the fight

20. The Individual Defendants then entered the restaurant.

21. Ms. Rodriguez was preparing to depart the restaurant with her sisters and her brother.

22. Ms. Rodriguez observed as her brother was violently grabbed by the Individual Defendants, thrown to the ground and arrested. Ms. Rodriguez knew there was no probable cause for her brother's arrest.

23. Ms. Rodriguez and her sisters voluntarily and on their own, walked from the restaurant to the precinct to inquire as to the reason for their brother's arrest and to voice their complaint that the arrest had no basis.

24. At the precinct, Ms. Rodriguez and her sisters were also arrested.

25. Ms. Rodriguez had committed no criminal acts and the Individual Defendants were aware her arrest was without probable cause. The arrest was motivated by a desire to retaliate against Ms. Rodriguez for her verbal complaint.

26. Ms. Rodriguez was held in custody for under twenty-four hours, and during much of that time was held in a cell that was very cold but was not even provided a blanket and her shoes were taken from her.
27. Ms. Rodriguez was charged with Obstructing Governmental Administration in the Second Degree, PL 195.05.
28. The charges filed were based on the materially false statements submitted by the Individual Defendants.
29. Thereafter, surveillance video recovered from the restaurant revealed that the Individual Defendants had fabricated the charges against Ms. Rodriguez. Video establishes that Ms. Rodriguez did not engage in the conduct alleged in the criminal complaints filed against her.
30. P.O. CHRISTOPHER RYAN (Shield #7929) and Lieutenant TERRANCE R. MCCALL forwarded false material information in the criminal complaint, including allegations that plaintiff physically interfered in an arrest, to prosecutors to support the charges filed against plaintiff.
31. On October 16, 2017, Ms. Rodriguez accepted an adjournment in contemplation of dismissal. The charges against her were dismissed and sealed on or about April 14, 2017.
32. P.O. John Does 1-5 failed to intervene in the unlawful arrest and assault.
33. Ms. Rodriguez was so traumatized by the unlawful arrest that she did not go to work for two days after her release.
34. As Ms. Rodriguez works in a public school, she also experienced adverse consequences to her employment due to the arrest.
35. As a result of the assault and arrest, Ms. Rodriguez experienced pain, suffering, mental anguish, and humiliation.